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BURMA

The ruling State Peace and Development Council (SPDC) offered no signs during the year that fundamental change was on the horizon. The SPDC's standoff with the opposition National League for Democracy (NLD) continued. No progress was made on ending forced labor. Counterinsurgency operations by the Burmese military in several ethnic minority areas, accompanied by extrajudicial executions, forced relocation, and other abuses, led to the displacement of thousands inside Burma and the flight of yet more refugees across the border into Thailand. In one of the few positive developments during the year, the International Committee of the Red Cross (ICRC) reopened its office in Rangoon in May and was able to visit Burmese prisons on a regular basis.

Bilateral and multilateral policies towards Burma remained largely unchanged during the year, with sanctions in place from much of the industrialized world. Various governments tried combinations of diplomatic carrots and economic sticks to improve human rights and encourage negotiations between the SPDC and the opposition, but none had succeeded by late October.

Human Rights Developments

Arrests and intimidation of supporters of the NLD continued, part of a campaign that began in August 1998 after the NLD announced its intention to convene a parliament in line with the 1990 election result. This was foiled by mass arrests, and the NLD subsequently established a ten-member Committee Representing People's Parliament (CRPP), a kind of parallel parliamentary authority whose creation was seen as a direct challenge to the government. Some sixty parliamentarians remained under detention while thousands of NLD registered voters were forced to resign their party membership.

Divisions appeared within the NLD itself in early May, as a group of twenty-five MPs interested in promoting dialogue with the SPDC criticized NLD leader Aung San Suu Kyi over the establishment of the CRPP. The NLD central leadership later accused the group of attempting to sow disunity within the party. In June Suu Kyi said that she would accept lower level contact with the government, but the Burmese Foreign Minister Win Aung responded that before this could happen the NLD should dissolve the CRPP. The NLD refused.

Detention of other political opponents continued. On January 13, a special court gave lengthy sentences averaging seven to ten years to 270 students who had demonstrated in support of the CRPP in November and December 1998. Of this group, a student named Thet Win Aung reportedly received a sentence of fifty-two years, and Myon Min Zaw, thirty-eight. Also in January, Mon National Democratic Front chairman Nai Htun Thein was detained without trial, following the sentencing of three other MNDF party members in December. Each received a sentence of seven years.

The Burmese government released three high-profile prisoners during the year in response to international pressure. Eighty-one-year-old Ohn Myint was released in January following the visit of United States Congressman Tony Hall. Dr. Ma Thida, a medical doctor and close colleague of Aung San Suu Kyi, was released from prison on February 11 on "humanitarian grounds" during a period of diplomatic differences between the European Union and the Association of South East Asian Nations (ASEAN). Ma Thida had received a twenty-year sentence in October 1993 for distributing anti-government materials. The E.U. called the release an "interesting gesture." A few days later, Burmese

writer, Nyi Pu Lay, who was serving a ten-year sentence, was also released. Any hopes that these releases constituted increased tolerance by the SPDC were dashed by the arrest in late February of fifty-one-year-old U Yaw Hsi, elected to parliament in 1990 as an NLD representative. He was arrested for possession of a cloth soaked in opium oil, a common medicinal item in Burma.

On May 6 the International Committee of the Red Cross (ICRC) reopened its office in Rangoon and was allowed to have confidential visits with prisoners in Insein prison, the facility near Rangoon where most well-known political prisoners are housed. An agreement reached between ICRC and the Burmese government allowed the ICRC to visit all of Burma's prisons. By September 1999 it reported having registered some eighteen thousand prisoners and visited nine places of detention.

Exiled dissidents spearheaded a campaign beginning early in the year for a mass uprising on September 9, 1999 (9-9-99). The uprising was intended to replicate the mass pro-democracy protests on August 8, 1988 (8-8-88) that have come to symbolize the high point in Burma's short "Democracy Summer" and were met with violence by the security forces. Dissident groups claimed the government arrested some five hundred persons in connection with the campaign, but diplomats put the number at about one hundred. The SPDC admitted arresting forty. Two British activists were also arrested when they entered the country in late August to protest against the government. The first, James Mawdsley, who had been arrested and deported twice previously, was given a seventeen-year sentence in a closed trial. The Burmese court in Rangoon sentenced Rachel Goldwyn to seven years of hard labor on charges of sedition. September 9 itself passed quietly with little protest.

Academic freedom remained tightly restricted, despite one small breakthrough. On January 5, 1999, the government announced that it was reopening four medical institutes. Classes there resumed in May. Thousands of other students spent yet another year with no access to college education. Since 1996, all universities have been closed in Burma, except for some post-graduate and other specialist courses.

Burma's ethnic minority areas were the sites of continuing violence and gross violations of human rights and humanitarian law. The military's forced relocation of villagers as a counterinsurgency measure continued in different parts of the Shan, Kayah (Karenni) and Karen state and Tenasserim Division, especially in areas where armed opposition groups were known to be active. After relocation, soldiers frequently burned homes, uprooted crops, and looted belongings that villagers left behind. At the relocation sites, villagers had to contribute up to fifteen days a month of forced labor on infrastructure projects, portering, night watch, and the physical maintenance of army camps. One new development of particular concern was the arrival of Burmese army "short pants" units to Karen State. Since December 1998, these out of uniform soldiers operating in units averaging six persons have "disappeared," beaten, and threatened villagers primarily in Nyaunglebin township in an effort to weed out from the rural communities any supporters of the Karen National Union (KNU).

Violations by the ethnic insurgent armies were also reported in 1999. In March for example, the KNU captured and executed eleven Burmese immigration officers along the road between Three Pagodas Pass and Thanbyuzayat. On July 31, elements of the Karenni National Progressive Party reportedly killed Daw Phraemoe and Hla Din, two local Karenni community leaders who had acted as go-betweens in cease-fire talks between the government and ethnic Karenni guerrillas.

In November 1998 the repatriation of Rohingya refugees from Bangladesh to Burma resumed. Nevertheless, the Burmese government obstructed the refugees' right to return by requiring the re-verification by Burmese authorities of those refugees previously cleared to return. Because of these obstructions, the maximum quota for returning refugees of fifty persons per week set by the Burmese government itself has never been filled. In Rakhine (Arakan) State, the Burmese government continued to deny the Rohingya full citizenship.

Defending Human Rights

The Burmese government's suffocating grip on all aspects of society has prohibited the development of any indigenous human rights institutions. Restrictions persisted on access to the country by foreign human rights monitors. In what has become a yearly ritual, the government denied U.N. Special Rapporteur on Burma Rajsoomer Lallah access to the country, but he nevertheless presented a scathing

report on conditions in Burma to the U.N. Human Rights Commission. The government continued to exercise strict control over the flow of information into and out of the country by monitoring telecommunications.

The Role of the International Community

The international community continued to differ over how to ease repression in Burma. Sanctions imposed by most of the world's leading donor governments remained in place.

Australia and Japan continued to refrain from giving aid but tried to maintain a political dialogue with the SPDC: Australia sent a mission to explore creation of an independent human rights commission in Burma, and Tokyo invited an SPDC military official to visit Japan. The E.U. sent a mission to Rangoon to try to break the SPDC-NLD deadlock. Its efforts to keep Burma at a diplomatic distance while trying to maintain cordial relations with ASEAN, of which Burma is a member, led to strains not only between the E.U. and ASEAN but also within the E.U. itself.

United Nations

On February 25 and April 23 respectively, the General Assembly and the Human Rights Commission adopted resolutions criticizing the government for a wide range of violations and calling on the SPDC to take the necessary steps to restore democracy, bring an end to forced labor, and cease the abuse of civilians in zones of conflict. The Human Rights Commission decided to extend by one year the mandate of the special rapporteur. The government postponed at the last minute the slated September 11 visit of U.N. Deputy Secretary-General Alvaro de Soto. De Soto and a World Bank official visited Rangoon from October 14 to 19 to discuss an incremental plan to restore aid in return for progress on human rights and dialogue with the NLD.

The concern of the International Labour Organization (ILO) about the Burmese government's use of forced labor in violation of the Forced Labour Convention resulted in Burma's effective expulsion from the organization. In July 1998 the ILO had published the results of a commission of inquiry into the use of forced labor in Burma, which incorporated a set of recommendations to be implemented by the SPDC if it wished to remain an ILO member in good standing. Nearly a year later, with no perceived progress, the ILO, in an unprecedented move at its annual conference, prohibited any further Burmese participation in its activities and banned receipt of ILO technical assistance. The ban was to be lifted only upon the cessation of the use of

forced labor and implementation of the recommendations.

Asia and the Pacific

Japan continued to engage the SPDC this year while keeping most of its Official Development Assistance (ODA) suspended. In a move seen as an effort to cultivate dialogue with the government, Tokyo hosted the January 20-28 visit of Brigadier General Kyaw Win, deputy director of the Office of Strategic Studies, an influential institution within the Burmese intelligence apparatus. Brig. Gen. Kyaw Win was the first high-ranking Burmese government official to receive an invitation from the Japanese government since 1988. During a meeting with parliamentarians, Kyaw Win was informed that no more aid would be forthcoming without substantial political and human rights reforms. Japan proposed but did not co-sponsor the Burma resolution at the U.N. Commission on Human Rights and privately urged the SPDC to agree to ICRC prison visits, prior to the actual opening of the ICRC office.

In a controversial move, Australia sent Human Rights Commissioner Chris Sidoti to discuss the potential for the Burmese government's establishing its own independent national human rights commission. This initiative was modeled after Australian support for similar bodies in Indonesia and Vietnam. SPDC authorities were reported to have expressed interest in the idea of a commission and in other types of human rights exchange with Australia while Aung San Suu Kyi voiced strong reservations, questioning whether the commission could be truly independent.

Fellow ASEAN members continued to have problems with Burma despite the formal policy of engagement. Burmese membership in ASEAN hindered the organization's meeting with the E.U. (See below). Thailand continued to host some one hundred thousand refugees in camps along the border while human rights conditions displaced others into the Thai labor market. The October 1

seizure of the Burmese embassy in Bangkok by five Burmese calling themselves the Vigorous Burmese Student Warriors threatened to lead to increased restrictions by the Thai government on student refugees. The trafficking of women to Thailand and abroad persisted, with the Burmese authorities failing to formulate a policy to address the issue. Two of Burma's top leaders, Senior General Than Shwe and Lieutenant General Khin Nyunt, visited Thai Prime Minister Chuan Leekpai in March. Human rights issues were not mentioned.

European Union

The European Union (E.U.) this year continued to criticize the Burmese government while searching for opportunities to initiate a dialogue between the generals and the NLD. The possible participation of Burmese officials in talks between senior officials of the E.U. and ASEAN scuttled a slated meeting of the two regional bodies in late January. In the last week of January, Germany advocated Burmese participation in ASEAN-E.U. foreign ministers' talks in Berlin in March, providing Burma was willing to include human rights issues in the agenda. This meeting was also canceled when several other E.U. member states insisted that Burma not be allowed to participate. ASEAN and E.U. representatives did meet in Thailand on May 24-27, after the Burmese government agreed to limit its participation to silent observation. In an effort to end the political stalemate in Burma, the European Union sent a four-person exploratory mission to Rangoon in July to discuss human rights and democratization. The mission, which the E.U. kept secret until the last minute, met with both the government and Aung San Suu Kyi but returned with no immediate results. On October 11, the E.U. extended sanctions for another six months.

United States and Canada

On May 19, President Bill Clinton extended sanctions against Burma for another year. Secretary of State Madeleine Albright delivered a strong condemnation of the Burmese regime at the ASEAN ministerial meeting in Singapore in July. Congressman Tony Hall made a visit to Rangoon from January 11 to 14 to assess humanitarian needs in the country. He returned to the US advocating the increase of assistance to Burma, particularly in the sectors of water, sanitation, food, security and public health.

During an official visit to Thailand in late July, Canadian Foreign Minister Lloyd Axworthy announced a shift in Canada's policy, when he expressed a willingness to engage the SPDC on the prospect of cooperation in narcotics suppression. Since 1988, Canadian policy had been to prohibit military and non-humanitarian exports to Burma and to limit official contact. However with Burma the world's largest producer of illicit opium and heroin, much of the international community was concerned about how to engage effectively on this issue.

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